

Tentative Rulings for September 28, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2104149	NORTHGATE GONZALEZ, LLC vs REALM REAL ESTATE, LLC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling:

Summary of Ruling: The Court denies the motion.

Factual / Procedural Context

This is a breach of contract and quiet title action filed September 14, 2021 by Plaintiffs Northgate Gonzalez, LLC, Wilson Holdings, L.P. and Los Altos XXVII, L.P. against Defendants Realm Real Estate, LLC¹, and Magnolia Partnership, LLC. On October 25, 2021 David Dieterle moved for leave to intervene as a Plaintiff Intervener, which the court granted on December 1, 2021.

On October 29, 2021, Defendants Magnolia Partnership, LLC filed a Cross-Complaint for breach of contract and enforcement of easement against Cross-Defendants Northgate Gonzales, LLC, Wilson Holdings, L.P., Altos XXVII, L.P., David Dieterly, Trustee of the David Dieterle Trust, and Hyrosen Properties, Inc. Thereafter, Cross-Complainants filed a First Amended Cross-Complaint, Second Amended Cross-Complaint then a Third Amended Cross-Complaint.

Cross-Defendant LMP Realty Advisors, LLC filed a Cross-Complaint, which they dismissed on November 5, 2024.

Plaintiffs moved for summary judgment on its Complaint and on June 2, 2023, the court granted Plaintiffs summary judgment. Defendant Magnolia appealed the summary judgment ruling. On April 10, 2025, the Court of Appeal affirmed the judgment.

On November 30, 2023, Cross-Complainant Magnolia Partnership, LLC dismissed their TACC on November 4, 2024.

Plaintiff Intervenor Dieterle dismissed his Complaint in Intervention on November 1, 2024.

Now Terracotta Two, LLC moves, pursuant to CCP section 387, for leave to intervene. The motion asserts that they are the current owner of the real property that is the subject of the amended judgment entered on July 19, 2023. Terracotta asserts that their interest is not adequately represented by any of the existing parties. Terracotta asserts mandatory intervention, but alternatively asserts that it has an interest in the matter in litigation, specifically the permanent injunction affecting the Property it owns, within the meaning of Code of Civil Procedure section 387(d)(2), warranting permissive intervention.

¹ On November 23, 2022, Plaintiffs dismissed the action against Defendant Realm Real Estate, LLC.

Terracotta was the Defendant Magnolia's lender and after the entry of judgment in this case they became the owner of the Magnolia parcel following a nonjudicial foreclosure sale. Terracotta seeks to intervene to seek a modification of the permanent injunction entered in this case against Magnolia regarding the construction of the Magnolia Flats Project (as part of the summary judgment order). Terracotta asserts that changes in the law enacted by AB1050 support a modification.

In opposition, Plaintiffs assert that the judgment and permanent injunction are final. Plaintiffs assert that Magnolia took title to the property aware of the litigation in this case and 14 months after the judgment and while Magnolia's appeal was pending. In addition, there is a pending action (CVRI2405860) filed by Magnolia against Terracotta asserting wrongful foreclosure and seeking to set aside the foreclosure. Further, whether Terracotta is bound by the terms of the permanent injunction is already being litigated in CVRI2602951 before Judge Choi in Department 5. The Verified Complaint pleads TerraCotta's reliance on AB 1050 and Plaintiffs' position that Section 714.6 neither reaches the recorded reciprocal easements nor displaces the Injunction. Therefore, Plaintiffs assert that the injunction can be enforced or modified in the Enforcement Action.

Terracotta did not file a reply memorandum, only a reply declaration.

Evidentiary Issues

Requests for Judicial Notice:

Plaintiffs filed the following requests for judicial notice:

1. Exhibit 1 a true and correct copy of the Complaint filed by Plaintiffs and LMP Realty Advisors, LLC against TerraCotta Two, LLC in the civil action entitled LMP Realty Advisors, LLC, et al. v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2602951;
2. Exhibit 2 a true and correct copy of the Demurrer to the Complaint filed by TerraCotta Two, LLC in the civil action entitled LMP Realty Advisors, LLC, et al. v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2602951;
3. Exhibit 3 a true and correct copy of the Court's ruling on the TerraCotta's Two, LLC's Demurrer to the Complaint in the civil action entitled LMP Realty Advisors, LLC, et al. v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2602951;
4. Exhibit 4 a true and correct copy of the First Amended Complaint filed by Magnolia Partnership, LLC against TerraCotta Two, LLC in the civil action entitled Magnolia Partnership LLC v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2405860;
5. Exhibit 5 a true and correct copy of the Notice of Recording of Pendency of

Action (Lis Pendens) filed in the civil action entitled Magnolia Partnership LLC v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2405860; and

6. Exhibit 6 an Order for Judicial Reference based on the parties' stipulation in the civil action entitled Magnolia Partnership LLC v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2405860.

The court grants all six requests.

Evidentiary Objections:

Plaintiffs filed evidentiary objections to portions of the Declaration of Tingting Zhang, all of which the court should overrule.

New Evidence Submitted with the Reply:

With its reply, Terracotta submitted the declaration of Attorney Andrew Lanphere, which the court strikes. Under general rule of motion practice, new evidence or arguments raised for the first time in reply papers are generally not allowed and are only allowed in exceptional cases. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The court has discretion to accept new evidence in reply papers as long as opposing party is given the opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.) However, while new evidence is generally not permitted in a reply brief, there is a recognized exception for points that are strictly responsive to arguments made for the first time in the opposition. (*Golden Door Props., LLC v Superior Court* (2020) 53 CA5th 733, 774)

Analysis

Pursuant to CCP section 387, a nonparty can intervene in "an action or proceeding between other persons by doing any of the following: (1) Joining a plaintiff in claiming what is sought by the complaint. (2) Uniting with a defendant in resisting the claims of a plaintiff. (3) Demanding anything adverse to both a plaintiff and a defendant." (CCP §387(b).) Here, Terracotta does not set forth which of the three it is seeking. Clearly, Terracotta is not seeking to join as a plaintiff. As to uniting with defendant Magnolia, those claims have been fully litigated. Nor has Terracotta shown it seeks to demand something adverse to both Plaintiffs and Defendant Magnolia.

Terracotta asserts that they are entitled to mandatory intervention pursuant to CCP section 387(d)(1), which provides that "[t]he court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: ...(B) the person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (CCP

§387(d)(1)(B).) This section has no application as 1) there is no pending disposition that may impair or impede Terracotta's ability to protect its interest.

As to discretionary intervention, pursuant to CCP section 3879d)(2), "[t]he court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. Again, there is nothing left to litigate, so Terracotta does not have an interest in the matter of the litigation or the success of either party or have an interest against both. Further, "the court [only] has discretion to permit a nonparty to intervene where the following factors are met: 1) the proper procedures have been followed, 2) the nonparty has a direct and immediate interest in the action, 3) the intervention will not enlarge the issues in the litigation, and 4) the reasons for the intervention outweigh any opposition by the parties presently in the action. (*Siena Court Homeowners Assn. v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1428.) While Terracotta has followed the proper procedures none of the other factors are present.

This case has been fully litigated and the permanent injunction at issue has been affirmed by the Court of Appeal without a subsequent appeal having been filed. Further, as Terracotta seeks intervention to challenge the enforceability of the permanent injunction in light of the enactment of AB 1050 (effective January 1, 2026) there is already a pending lawsuit between Plaintiffs and Terracotta regarding that issue. For all of these reasons, the court denies the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2301806	LANGSTON vs CITY OF RIVERSIDE	MOTION TO TAX COSTS

Tentative Ruling:

Summary of Ruling: The court taxes \$233,385.08 in total, reducing Defendants' requested costs from \$358,788.51 to \$125,403.43.

Factual / Procedural Context:

On 4/7/23, Plaintiffs Thomas Langston and Judy Langston filed this wrongful death action arising from a 6/15/15 vehicle collision involving their son, Decedent David Langston, and Defendant Victor Lee Schmitz, a police officer hired by Defendant City of Riverside. Plaintiffs filed the First Amended Complaint ("FAC") on 9/15/23. Plaintiffs alleged wrongful death claims in their individual capacities and survival claims as successors-in-interest. On 5/22/26, the jury returned a unanimous verdict in favor of Defendants. On 7/2/26, Defendants served an amended memorandum of costs seeking \$358,788.51.

Now, Plaintiffs move to strike or tax these costs. Plaintiffs argue that Defendants' separate CCP §998 offers of \$7,500 to each Plaintiff were invalid because each offer required an unattached and unspecified release of *all* claims, and a dismissal of the entire

action. Plaintiffs further argue that the offers were token or nominal, and not made in good faith. Plaintiffs therefore seek to strike expert witness fees, court reporter and transcript fees, deposition costs, service of process costs, and investigation expenses, arguing that they are prohibited, duplicative, or excessive.

In opposition, Defendants argue they are entitled to costs as the prevailing parties. They argue that the §998 offers were valid and reasonable because Defendants consistently maintained that Plaintiffs could not prove causation, and that the jury ultimately returned a defense verdict. Defendants assert that the remaining costs were reasonably necessary because the case involved extensive medical evidence in various states, multiple waivers and subpoenas in various forms, multiple experts, among other discoveries. Defendants contend that the \$4,331.76 investigation expenses should be removed.

In reply, Plaintiffs argue that the burden shifted to Defendants on every challenged item, but Defendants provided no evidence addressing the particular cost objections. Plaintiffs also contend that the offers were conditioned on terms neither Plaintiff could independently perform. They assert that Defendants did not substantiate the challenged expert, deposition, service, or court reporter charges.

Analysis

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Association* (1993) 19 Cal.App.4th 761, 773-774.) “A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the costs are properly objected to, they are placed at issue, and the burden of proof is on the party claiming them. (*Ladas v. California State Automotive Association, supra*, 19 Cal.App.4th at 774.)

CCP §1033.5 identifies allowable and prohibited costs. Even an allowable cost must be “reasonably necessary to the conduct of the litigation” and “reasonable in amount.” (CCP § 1033.5(a)-(c).)

The primary issue here is whether Defendants’ section 998 offers support an award of expert witness fees of \$218,925.93.

A defendant whose offer is not accepted and who obtains a more favorable judgment or award may recover post-offer costs of the services of expert witnesses, in the court’s discretion. Those fees must have been actually incurred and reasonably necessary in preparing for or conducting trial. (CCP § 998(c)(1).) “Where ... the offeror obtains a judgment more favorable than its offer, the judgment constitutes prima facie evidence showing the offer was reasonable and the offeror is eligible for costs as specified in section 998.” (*Santantonio v. Westinghouse Broadcasting Co.* (1994) 25 Cal.App.4th 102, 117; emphasis added.) “The burden is on the party complaining to establish an abuse of discretion, and unless a clear case of abuse is shown and unless there has been a

miscarriage of justice a reviewing court will not substitute its opinion and thereby divest the trial court of its discretionary power.” (*Clark v. Optical Coating Laboratory, Inc.* (2008) 165 Cal.App.4th 150, 185-186 (internal quotations omitted).) Whether a section 998 offer was reasonable is determined by the circumstances existing at the time the offer was made. (*Fortman v. Hemco, Inc.* (1989) 211 Cal.App.3d 241, 264.) The offer must be sufficiently certain to permit the offeree to evaluate and accept it without further negotiation. (*Sanford v. Rasnick* (2016) 246 Cal.App.4th 1121, 1131-32.)

Here, Defendants served a separate \$7,500 offer on each Plaintiff. Each offer, however, required the individual offeree to obtain “[a] dismissal of this action against City of Riverside and Victor Lee Schmitz, with prejudice.” (Omofoma Decl., Ex. B, p. 1.) “This action” included the claims of both Plaintiffs, Thomas Langston and Judy Langston. Neither Plaintiff could independently dismiss the other Plaintiff’s claims. Each offer therefore required the consent or performance of the other Plaintiff before the offeree could perform or sign on the settlement.

Ordinarily, a §998 offer involving multiple plaintiffs must permit each plaintiff to accept independently. A joint or conditional offer may qualify where the plaintiffs possess a unity of interest and seek recovery for a single, indivisible injury. Wrongful death heirs ordinarily have such a unity of interest because wrongful death claims may be brought as a single, joint, and indivisible action. (*McDaniel v. Asuncion* (2013) 214 Cal.App.4th 1201, 1206-08.)

However, this exception does not necessarily apply when the action also includes survival claims. This is because survival and wrongful death claims are “distinct” claims, where Plaintiffs seek recovery for different personal damages and respective legal rights. (*Williams v. The Pep Boys-Manny, Moe & Jack of California* (2018) 27 Cal.App.5th 225, 229 and 244.)

Here, the FAC alleges that Plaintiffs “bring this action both on their own behalf under Code of Civil Procedure, § 377.60, and as successors-in-interest to the Decedent under Code of Civil Procedure, § 377.30.” (FAC ¶ 6.) The offers did not distinguish between those claims. Omofoma Decl., Ex. B.) Critically, although Defendants apportioned the monetary offers by serving each Plaintiff with a \$7,500 offer, each offer still required dismissal of the entire action. The condition prevented either Plaintiff from accepting without the other Plaintiff’s agreement. The offers therefore did not permit each Plaintiff’s independent acceptance. The offers are deemed invalid.

Besides, an offer may be invalid when it is “conditioned upon release of all known and unknown claims” or “waive claims not encompassed within the current lawsuit.” (*Sanford v. Rasnick, supra*, 246 Cal.App.4th at 1131.) Here, the offers required a “release of all claims” without attaching a release or defining its scope. This presents an additional uncertainty.

Also, contrary to Plaintiffs’ arguments, a modest offer may be reasonable when the offeror reasonably believes it has no liability. However, the court need not resolve the parties’ competing evidence regarding good faith since the offers were facially invalid.

For all the foregoing reasons, therefore, Defendants are not be allowed to recover expert witness fees under §998. The memorandum of costs lists \$218,960.93 under Item 8 (See, amended memorandum of costs filed 7/2/26), but Plaintiffs' motion repeatedly identifies the amount as \$218,925.93. Because the court strikes Item 8b in its entirety, the court taxes the full \$218,960.93 as appears in the cost memo.

With their opposition, Defendants concede that the \$4,331.76 in investigation expenses under Item 15 should be removed. The court taxes \$4,331.76.

Plaintiffs also challenge \$51,990.61 in deposition costs under Item 4. Costs of "[t]aking, video recording, and transcribing necessary depositions" are allowable, but they must be "reasonably necessary to the conduct of the litigation" and "reasonable in amount." (CCP § 1033.5(a)(3)(A), § 1033.5(c)(2)-(3).) Plaintiffs specifically identify a \$440 charge described as a "duplicate video fee" for the Plaintiffs' depositions (1/15/26), a \$310 charge for serving objections on Plaintiffs' counsel (6/26/25), post-verdict video charges of \$326.25 (6/4/26) and \$396.25 (5/28/26), and a \$57.95 shipping charge of a flash drive (3/26/26). Defendants have not substantiated these particular charges. The court therefore taxes Item 4 by \$1,530.45, consisting of \$440 + 310 + 326.25 + 396.25 + 57.95. Plaintiffs have not established a basis to tax the remainder of Item 4.

Plaintiffs also challenge \$17,623.78 in process service costs under Item 5. Section 1033.5(a)(4) permits service of process costs. It does not automatically permit recovery of subpoena drafting charges or photocopying. Plaintiffs identify \$3,859.12 in "subpoena drafting and issuance charges," \$329.10 in copying charges (\$94.85+94.5+139.75), a duplicated \$275 invoice for personal service on Mark Bethel dated in January 2025, a \$71.94 charge for serving deposition objections (2 x \$35.97), a \$55 "Same-day e-service fee," a \$149.95 charge to serve an "on-call letter," and \$821.13 in "rush and out of state changes." Defendants, with their opposition, do not address these charges individually or show that they are reasonably necessary. The court therefore taxes Item 5 by \$5,561.24.

Plaintiffs finally challenge \$62,038.20 in "court reporter/transcript fees" under Item 11. "Court reporter fees as established by statute" are allowable, but "[t]ranscripts of court proceedings not ordered by the court" are not allowable. (CCP § 1033.5(a)(11), (b)(5).) Defendants do not establish that the court ordered the 4/16/26 transcript, for which they claim \$455. The court therefore taxes that amount. Plaintiffs also identify 2 separate court reporter invoices for the same day on 4/20/26 (one for \$2,545.70 and another for \$3,235.85). Defendants provide no evidence explaining why two charges were reasonably incurred for the same trial date. Since a trial occurred on 4/20/26, but Defendants did not establish that the charges represented different reporters or services, the court taxes the lower charge of \$2,545.70. (CCP § 1033.5(a)(11).) The court therefore taxes Item 11 by \$3,000.70, consisting of charges of \$455 + \$2,545.70.

Defendants also request that the court requires Plaintiffs to pay one-half of the court reporter expenses, reasoning that the "only reason Plaintiffs have a record to cite too is because Defendants picked up the tab for the court reporter." This request is not proper through an opposition. The court denies the request.

For the foregoing reasons, the court taxes costs as follows: \$1,530.45 (Item 4, deposition costs) + \$5,561.24 (Item 5, service of process) + \$218,960.93 (Item 8b, expert witness) + \$3,000.70 (Item 11, court reporter and transcript) + \$4,331.76 (Item 15, investigation expenses) = \$ 233,385.08 in total.

Accordingly, Defendants' recoverable costs are reduced from \$358,788.51 to \$125,403.43.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406562	ANDOH vs AMERICAN HONDA MOTOR CO., INC.	MOTION FOR TERMINATING SANCTIONS, INCLUDING TO STRIKE DEFENDANTS ANSWER

Tentative Ruling:

Summary of Ruling:

The Court denies Deny the motion as the evidence presented in Opposition shows Plaintiff did not provide notice of the court's rulings on its discovery orders..

Facts/Procedural Summary

This is a lemon law case. On January 25, 2023, Plaintiff purchased a certified pre-owned 2019 Acura RDX. Plaintiff alleges violations of the written warranty provided at the time of sale.

The parties have engaged in various discovery disputes and motions throughout the litigation. On February 10, 2026, the court granted Plaintiff's Motion to Compel the PMK deposition. Defendant was ordered to produce its PMK within thirty calendar days from entry of the order and to produce responses and production of documents to the associated Request for Production of Documents at the time of the PMK deposition. (2/10/26 Order.)

Defendant did not comply with that order so Plaintiff brought another motion to force Defendant to comply. Defendant did not oppose the motion and the court granted the motion on June 4, 2026. (8/21/26 Order.)

Plaintiff now brings the instant motion for terminating sanctions and asks the court to strike Defendant's Answer and enter default against Defendant. Plaintiff notes Defendant still has not produced a PMK for deposition and has not provided any responsive documents, despite the court's two orders requiring it to do so. Plaintiff argues terminating sanctions are appropriate under CCP §§ 2023.010 and 2023.030.

In Opposition, Defendant argues the Court directed Plaintiff to give notice of the two rulings but did not do so. Defendant states Plaintiff simply never served notice of the February 10, 2026, ruling. (Zipser Decl. ¶2.) Defendant contends Plaintiff did not serve

notice of the June 4, 2026, ruling until August 21, 2026. (Zipser Decl. ¶3.) Plaintiff then filed the instant motion on the next business day. (Zipser Decl. ¶5.) Defendant notes it has “continued working to identify another date on which its [PMQ] can be produced and has communicated with Plaintiff’s counsel to that end.” (Zipser Decl. ¶10.) Defendant asserts it is willing to provide a witness but has not yet been able to find a mutually agreeable date given the impacted nature of the witness and counsel’s calendars.

Jury trial is set for September 28, 2026.²

Analysis

When a party fails to obey a court order compelling responses to a discovery request, the court may impose monetary, issue, evidentiary and/or terminating sanctions. (CCP § 2023.030(a)-(d).) The court has discretion to issue a terminating sanction in response to a misuse of the discovery process. (CCP § 2023.030(d); see also CCP § 2031.310(i).) Terminating sanctions can take the form of (1) striking out the party’s pleading or part thereof; (2) staying further proceedings by that party until he or she obeys the court order; (3) dismissing that party’s action, or any part thereof; or (4) rendering default judgment against that party. (CCP § 2023.030(d).)

Terminating sanctions are appropriate where there is a history of abuse, the violation was willful, and evidence shows less severe sanctions would not result in compliance. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) The following factors may be relevant in deciding whether and which sanctions to impose for disobedience to discovery orders: the time that has elapsed since the discovery was served; whether the party received extensions of time to answer or respond; the number of discovery requests and the burden of replying; the importance of the information sought; whether the answering party acted in good faith and with reasonable diligence; whether answers supplied were evasive or incomplete; the number of questions remaining unanswered; whether the unanswered questions sought information that was difficult to obtain; the existences of prior court orders compelling discovery and the answering party’s compliance with them; whether the party was unable to comply with previous orders regarding discovery; whether an order allowing more time to respond would enable the responding party to supply the necessary information; and whether some sanction short of dismissal or default would be appropriate to the dereliction. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796.)

Terminating sanctions are not appropriate here. Plaintiff did not provide Defendant with notice of the court’s ruling on the first motion to compel and then Plaintiff waited months to provide Defendant with notice of the court’s ruling on the second motion. Plaintiff then filed the instant motion the next business day after finally providing notice of the court’s ruling on the second motion. Plaintiff did not provide any evidence that they served either notice of ruling on Defendant. It is unclear how Plaintiff expected Defendant to comply with a court order it was unaware of. Furthermore, Defendant has indicated it is willing and able to produce the witness for deposition once the parties can find a mutually agreeable date.

² The Discovery Act does not specify any particular notice requirement for imposition of discovery sanctions. The notice required is the same as on motions generally under CCP §1005(b). Since this is a motion for sanctions and not a discovery motion, the 30-day cutoff before trial does not apply.

There is no evidence that less severe sanctions would not result in compliance. Given Defendant's Opposition and declaration in support thereof, it appears no sanctions of any kind are necessary to enforce compliance.

The Court denies Deny the motion as the evidence presented in Opposition shows Plaintiff did not provide notice of the court's rulings on its discovery orders.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF KIMBERLY NAUCLER AS SUCCESSOR-ININTEREST TO KAELYNN FLETCHER TO DEFENDANT'S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

Summary of Ruling: The Court denies the motion finding the motions are moot. Based on the evidence in the before the Court, the responses served by Plaintiffs on 9/15/2026 were Code-compliant and contained no objections. Defendant is awarded \$1,100 in total sanctions for all motions.

Factual / Procedural Context:

This is a wrongful death action. Plaintiffs Elizabeth and Lonnie Fletcher and Kimberly Naucer as successor-in-interest to Kaelynn Fletcher ("Plaintiffs") allege that on Kaelynn Fletcher ("Kaelynn" or "Decedent") was an intellectually disabled dependent adult. On February 23, 2019, Kaelynn was admitted to a care facility owned and/or operated by Defendant Elizabeth Manor Housing Foundation, Inc. dba Elizabeth Manor Residential Care ("Elizabeth Manor"). Plaintiffs allege that staff at Elizabeth Manor insulted, humiliated and mocked Kaelynn's physical appearance and hygiene and threatened her with physical violence. On April 23, 2021, Kaelynn eloped from the facility. On January 13, 2023, Kaelynn slipped and fell while showering due to the staff's failure to properly assist her. In November 2023, Elizabeth Manor failed to seek necessary medical treatment in response to Kaelynn's pneumonia symptoms. Kaelynn was admitted to the hospital where she was treated for pneumonia and underwent surgery to repair a fractured ankle. She was then transferred to a facility owned by Defendant Riverside Healthcare & Wellness Centre, LLC dba Alta Vista Healthcare & Wellness Centre ("Alta Vista"). Plaintiffs allege that Alta Vista failed to provide or administer medical prescribed by the hospital. Plaintiffs further allege that Alta Vista coerced Kaelynn into signing legal and financial documents despite her disability. Kaelynn was permitted to return to Elizabeth Manor for Christmas to receive gifts. While there, she was not provided with a wheelchair or assistance with ambulating. As a result, Kaelynn fell face first at the front door of Elizabeth Manor, striking her head on concrete. Elizabeth

Manor failed to promptly seek necessary medical care. Kaelynn died on Christmas day. The cause of death was pulmonary thromboemboli due to deep vein thrombosis.

Plaintiffs filed the Complaint on September 23, 2025 and the operative Third Amended Complaint (“TAC”) on June 16, 2026. They assert five causes of action for: (1) 1. Statutory Violation of California’s Elder and Dependent Adult Civil Protection Act (Wel. & Instit. Code §15600 et seq.); (2) Violation of the Patient’s Bill of Rights/Health & Safety Code §1430; (3) Professional Negligence; (4) Negligence; and (5) Wrongful Death.

On March 30, 2026, Alta Vista served written discovery, including Requests for Production, Set One (“RFP”), Special Interrogatories, Set One (“S-Rogs”) and Form Interrogatories, Set One (“F-Rogs”) on Plaintiff Kimberly Naucer. Alta Vista also served F-Rogs on Plaintiffs Elizabeth Fletcher and Lonnie Fletcher. None of the Plaintiffs served any discovery responses.

In separate motions, Alta Vista now moves to compel responses to the RFPs, S-Rogs and F-Rogs from Plaintiff Naucer and moves to compel F-Rog responses from Plaintiffs Elizabeth and Lonnie Fletcher. Alta Vista argues that all objections have been waived. Alta Vista argues that sanctions are warranted for each motion (\$460 for the S-Rog and RFP motions against Plaintiff Naucer; \$260.00 for the F-Rog motion against Naucer; and \$160.00 against for each F-Rog motion against Elizabeth and Lonnie.)

In their joint opposition, Plaintiffs argue that Alta Vista failed to meet and confer in good faith and filed the motions while the meet and confer process was ongoing. Plaintiffs assert that Code-compliant responses have been served rendering the motions moot. Plaintiffs argues that sanctions are unwarranted and request sanctions against Alta Vista due to the failure to meet and confer.

ANALYSIS:

Motion to Compel Responses:

Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) Likewise, a party may obtain discovery by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action. (CCP §2031.010(a).) The party to whom the interrogatories or RFPs are served must serve a response within 30 days after service. (CCP §§2030.260(a); 2031.260(a).) If the responding party fails to serve a timely response, the party waives all objections, including those based on privilege. (CCP §§2030.290(a); 2031.230(a).) The propounding party may move to compel a response. (CCP §2030.290(b); 2031.300(b).) Importantly, there is no meet and confer requirement under sections 2030.290 or 2031.300.

In this case, Alta Vista propounded the discovery at issue on March 30, 2026. (Decl. of Gari, ¶ 3.) As such, responses were due on May 1, 2026. (Id at ¶ 4.) Alta Vista granted

three extensions until June 29, 2026. (Id at ¶ 6; Ex. B.) However, Plaintiffs failed to serve any discovery until September 15, 2026.³ (Decl. of Bristow, ¶10.)

Plaintiffs argue that because they served Code-compliant responses, the motions to compel initial responses are now moot. “If a party provides an untimely interrogatory response that does not contain objections and that sets forth legally valid responses to each interrogatory, the untimely response might completely or substantially resolve the issues raised by a motion to compel responses under section 2030.290.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 408-409.) Counsel indicates that Plaintiffs served verified, code-compliant “supplemental” discovery responses to the discovery requests at issue in Alta Vista’s Motions to Compel, it is not clear whether the responses include objections, which have been waived.⁴ To the extent that the responses are Code-compliant and do not include objections, the motions are moot. Otherwise, Plaintiffs should be ordered to provide objection-free responses within 15 days.

Here, based on the evidence before the Court, the responses served by Plaintiffs on 9/15/2026 were Code-compliant and contained no objections.

Sanctions:

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a discovery response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §§ 2030.300(d); 2031.310(h).) If a party provides an untimely discovery response after a motion to compel has been filed, that completely resolves the substantive issues, the court retains the authority to hear the motion and award sanctions. (See *Sinaiko, supra*, 148 Cal. App. 4th at 408-409.) “Whenever one party’s improper actions even if not “willful”—in seeking or resisting discovery necessitate the court’s intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.)

Plaintiffs argue that sanctions are unwarranted because Alta Vista initiated a meet and confer process and then filed the motions without resolving the issues informally. Plaintiffs argue that the Discovery Act requires a party moving to compel further discovery responses must show that he or she made a serious attempt to obtain an informal resolution of each issue. (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) “The level of effort at informal resolution which satisfies the “reasonable and good faith attempt” standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly

³ Counsel refers to the September 15 responses as “supplemental responses”. However, he does not indicate that any responses were served prior to the “supplemental” responses.

⁴ On motion, the court may relieve a responding party from the waiver of objections if the court determines that the party has served a response in substantial compliance with the discovery code and the party’s failure to serve a timely response was the result of mistake, inadvertence or excusable neglect. (CCP §§2030.290(a); 2031.300(a).) “A noticed motion for relief from waiver is required. (i.e., such relief cannot be granted ex parte, or where the only motion pending is a motion to compel.” (Weil & Brown, Cal. Practice Guides: Civ. Pro. Before Trial (The Rutter Group, 2022) 8:1034.) Plaintiffs have not filed a motion for relief from waiver under sections 2030.290 and 2031.300. Accordingly, any objections asserted in the September 15 responses are improper.

focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant.” (*Obregon v. Superior Court* (1998) 67 Cal. App. 4th 424, 431.) However, the cases cited by Plaintiffs involve motions to compel further discovery responses which require a meet and confer declaration rather than motions to compel initial discovery, which do not.

Counsel asserts that on July 9 and 10, 2026, Plaintiffs requested a two-week, which was not expressly rejected. (Decl. of Bristow, ¶ 8.) However, contrary to Plaintiffs’ assertion, the meet and confer email suggests that Alta Vista was concerned about granting additional extension without a definite indication as to the date for the responses. (Id, Ex. A.) Moreover, it appears that the responses were not served by the alleged two-week extended deadline. In fact, responses were not served until September 15, 2026, more than two months after the meet and confer discussions. Plaintiffs’ failure to provide any discovery until after the present motions were filed was not substantially justified. Thus, sanctions are warranted.

The sanctions requested by Alta Vista are somewhat excessive considering that the motions are essentially identical. Alta Vista is awarded \$260 for the first F-Rog motion, S-Rog motion and the RFP motion and \$160 for each additional F-Rog motion for a total of \$1,110.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF ELIZABETH FLETCHER TO DEFENDANT’S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

See #4 above

6.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF LONNIE FLETCHER TO DEFENDANT’S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

See #4 above

7.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF KIMBERLY NAUCLER AS SUCCESSOR-IN INTEREST TO KAELYNN FLETCHER TO DEFENDANT'S SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling:

See #4 above

8.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF KIMBERLY NAUCLER AS SUCCESSOR-ININTEREST TO KAELYNN FLETCHER TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

See #4 above

9.

CASE #	CASE NAME	HEARING NAME
CVRI2601725	LUA vs PLATINUM SALES AND SERVICES, INC.	DEMURRER ON COMPLAINT FOR OTHER CONTRACT

Tentative Ruling:

Factual / Procedural Context

On December 12, 2025, Plaintiff Luis Lua purchased a 2020 Toyota Tacoma Double Cab ("vehicle") from Defendant Platinum Sales and Services, Inc. ("Platinum"). Defendant Jet Insurance Company ("Jet Insurance") issued a bond to Platinum as required to sell vehicles under Vehicle Code § 11710. Plaintiff alleges Platinum represented it could and would register and title the vehicle to Plaintiff, but it failed to do so. Platinum also

represented that the vehicle was inspected and had no problems. However, at the time of purchase, the braking system was substantially worn and the battery needed to be replaced. Plaintiff would not have purchased the vehicle if he had known that Platinum would not or could not register and title or that the vehicle was in an unsafe condition.

On March 18, 2026, Plaintiff filed this action alleging seven (7) causes of action: 1.) Violation of the Consumers Legal Remedies Act, Civil Code § 1750, et seq.; 2.) Civil Theft – Violation of Penal Code § 496; 3.) Fraud & Deceit; 4.) Negligent Misrepresentation; 5.) Violation of Vehicle Code § 5753; 6.) Violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq.; and 7.) Violation of Vehicle Code § 11711.

Jet Insurance now demurs to the 7th cause of action for Violation of Vehicle Code § 11711 (the only claim asserted against it) on the ground it fails to state facts sufficient to constitute a cause of action and is uncertain. (C.C.P., § 430.109(e), (f).)

Jet Insurance also separately moves to strike prayers for rescission and restitution; actual damages; incidental and consequential damages; punitive damages and civil penalty where available; equitable and injunctive relief permitted under Civil Code §§ 1780 and 1794 and Business & Professions Code § 17200; reasonable attorneys' fees and costs of suit as permitted by law (including, but not limited to, Civil Code § 1780(e); Penal Code § 496(c); Vehicle Code § 5753; Code of Civil Procedure § 1021.5; and the bond company claims). (C.C.P., §§ 435-436.)

Analysis

I. Meet and Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconferencing or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Here, counsel declares he sent a letter via email requesting to meet and confer and outlining the alleged deficiencies and Plaintiff's counsel did not respond. (Gascou Decl., ¶¶ 5-8.) This is minimally sufficient.

II. Demurrer

A. Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; C.C.P., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts-- that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

B. 7th Cause of Action: Violation of Vehicle Code section 11711

Jet Insurance challenges the sole cause of action asserted against it on grounds of insufficiently articulated fraud.

Under Veh. Code, section 11711:

(a) If any person (1) shall suffer any loss or damage by reason of any fraud practiced on him or fraudulent representation made to him by a licensed dealer or one of such dealer's salesmen acting for the dealer, in his behalf, or within the scope of the employment of such salesman and such person has possession of a written instrument furnished by the licensee, containing stipulated provisions and guarantees which the person believes have been violated by the licensee, or (2) if any person shall suffer any loss or damage by reason of the violation by such dealer or salesman of any of the provisions of Division 3 (commencing with Section 4000) of this code, or (3) if any person is not paid for a vehicle sold to and purchased by a licensee, then any such person shall have a right of action against such dealer, his salesman, and the surety upon the dealer's bond, in an amount not to exceed the value of the vehicle purchased from or sold to the dealer.

...

...

(e) The claims of any person under subdivision (a) who is not a licensee shall be satisfied first and entitled to preference over all other claims under subdivision (a).

(Veh. Code, § 11711.)

Plaintiff here alleges his claims under subdivisions (a)(1) and (2). Under (a)(1), “[a] reading of section 11711 readily discloses that in order to recover for loss or damage by reason of any fraud practiced on him or fraudulent representation made to him by a licensed bonded dealer, the plaintiff must have a writing furnished by the licensee containing stipulated provisions and guarantees which plaintiff believes have been violated by the licensee. Where, as here, a general demurrer is filed, and reference is made to Code of Civil Procedure, section 430, subdivision 6, the plaintiff is put on notice that he must amend his complaint to show that such guarantees were in writing in order to bring him within the purview of the code section. A plaintiff’s failure to so amend is ground for dismissal upon defendant’s motion.” (*Krebs v. Travelers Indem. Co.* (1961) 192 Cal.App.2d 83, 85, citing Code of Civ. Proc., § 581, subd. 3.)

Here, as Jet Insurance argues, Plaintiff has failed to adequately alleged fraud as contemplated by the statute. Sections 11710 and 11711 use “fraud” and “fraudulent representation” in their normal legal sense, as defined by Civil Code sections 1571–1573 and related fraud cases. (*Beverly Finance Co. v. American Casualty Co.* (1969) 273 Cal.App.2d 259, 267–68.) The elements of fraud are well established: “(1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage.” (*Behnke v. State Farm Gen. Ins. Co.* (2011) 196 Cal.App.4th 1443.) Fraud must be pleaded with specificity; general and conclusory allegations do not suffice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821.) This particularity requirement “necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631.) The complaint does not allege fraud with the requisite specificity or particularity. (See e.g. Comp., ¶¶ 34-40, 77.) I recommend the Court sustain the demurrer with leave to amend.

To the extent Plaintiff also alleges a violation of subdivision (a)(2) “by failing to register the 2020 Toyota Tacoma or transfer title to it to Plaintiff, thus violating Division 3.” As Jet Insurance argues, this is a legal conclusion, not a factual allegation. (*Mendoza v. JPMorgan Chase Bank, N.A.* (2016) 6 Cal.App.5th 802, 810 [court assumes truth of the complaint’s factual allegations but not its legal conclusions].) Plaintiff’s reliance on incorporation is also unavailing. The Vehicle Code section 5753 cause of action is not asserted against Jet Insurance, and Plaintiff does not allege in the 7th Cause of Action itself which specific Division 3 provision was violated, what conduct constituted the violation, or how that statutory violation caused a covered bond loss. Accordingly, the Court sustains the demurrer, and grants leave to amend within 30 days.

III. Motion to Strike

Given the ruling to sustain the demurrer with leave to amend, the motion to strike is moot.

10.

CASE #	CASE NAME	HEARING NAME
CVRI2601725	LUA vs PLATINUM SALES AND SERVICES, INC.	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER CONTRACT

Tentative Ruling:

Given the ruling to sustain the demurrer with leave to amend, the motion to strike is moot.